last night that it is categorically imperative to finish this bill this week, because we have set a goal of October 1 for sine die adjournment. Next week we plan to consider the foreign-aid bill. The following week we plan to consider the military-appropriation bill. The week after that we plan to consider the tax bill, which will carry us up to the middle of September and leave two more weeks for agreement on many conference reports, which cannot be acted upon until the House returns on September 12.

If we do not have a limitation of debate on this bill, it will mean that we shall be here tonight until 12 o'clock, and perhaps until Saturday morning. Certainly the distinguished Senator from North Dakota cannot see any real good in holding us here that long. I am sure that he does not want to speak for 2 or 3 hours on any of these subjects, and I hope no other Senator does.

I plan to speak for about 10 minutes on the Voice of America, but not because I think it will change any votes. I do not believe that any speeches will be made here today which will change votes. I believe that every Senator knows pretty well what is involved, and how he intends to vote. The thing for the Senate to do is to expedite the business before it. I hope that my distinguished friend from North Dakota will withdraw his objection and let us proceed under a plan which gives promise of efficient action by this greatest of all legislative bodies.

The VICE PRESIDENT. Did the Chair correctly understand the Senator from North Dakota to object to the request?

Mr. LANGER. I object. I do not see any reason why we should have to adjourn by the 1st of October. We receive our pay for October, November, and December. I do not see any reason for any limitation, and I object.

Mr. McCARRAN. Mr. President, I should like to invite the attention of the majority leader to the fact that there are now two amendments pending to the Voice of America item. If we permit debate of an hour and a half on each amendment——

Mr. McFARLAND. If my friend from Nevada will yield, I should like to say that my request was that debate on the committee amendment with reference to the Voice of America be limited to an hour and a half, but as to any other amendments the time would be limited to 40 minutes.

The VICE PRESIDENT. The Chair understands that one of the amendments would merely restore the House language. It is not necessary to offer an amendment in order to accomplish that. It would be necessary only to vote on the committee amendment.

Mr. WHERRY. Mr. President, I suggest that we could have a quorum call. Perhaps we may be able to work out an agreement during the call for a quorum.

Mr. McFARLAND. Very well. I suggest the absence of a quorum.

The VICE PRESIDENT. The clerk will call the roll.

The Chief Clerk proceeded to call the roll.

Mr. McFARLAND. Mr. President, I ask unanimous consent that the order for a quorum call be rescinded, and that further proceedings under the call be suspended.

Mr. McCARRAN. Mr. President, I object.

The VICE PRESIDENT. Objection is heard.

Mr. McCARRAN. I want a quorum call, and I do not want a synthetic quorum call.

The VICE PRESIDENT. The clerk will proceed with the call of the roll.

The Chief Clerk resumed the call of the roll.

Mr. WHERRY. Mr. President, I ask unanimous consent that the order for a quorum call be rescinded and that further proceedings under the call be suspended.

The VICE PRESIDENT. Is there objection?

Mr. McCARRAN. Mr. President——

Mr. WHERRY. The Senator from Indiana [Mr. JENNER] is on the floor, and he wishes to make some remarks on a subject matter other than the pending bill. I believe it would help the situation if he could proceed.

Mr. McCARRAN. In that case I have no objection. However, after the Senator from Indiana has concluded his remarks I shall insist on a quorum call.

Mr. WHERRY. I agree with the Senator from Nevada so far as the pending bill is concerned.

The VICE PRESIDENT. Is there objection to the request of the Senator from Nebraska? The Chair hears none, and it is so ordered.

THE JAPANESE PEACE TREATY

Mr. JENNER. Mr. President, on January 22, 1951, the State Department sent John Foster Dulles as its emissary to Japan to negotiate a peace treaty. Mr. Dulles found the usual apparent obstruction by the Communists and by Great Britain, but he flitted about like a dusty moth and came up with "settlements" of all the problems that vexed him or the State Department.

Now the final draft treaty is ready, and it is to be formally signed September 4, or thereabouts, at San Francisco in a conference of nations very like that in which the United Nations was born.

This plan is moving with exquisite smoothness. Not the faintest sound of friction is heard as it slides down the ways. Soon the treaty will be finally launched and will sail off into the future without any chance to change the design which its sponsors laid down for it.

I say, Mr. President, that this proposed Japanese peace treaty is a fraud. It is a booby trap. It is a repetition of the "Marshall plan" for subversion of China which General Marshall took to Chungking in December 1945.

This draft treaty is a subtle, devious plan to destroy what is left of our policy and our security in the Pacific by the same bold, clever trick of removing the beams supporting the free countries of Asia and letting them fall without letting it appear that we pulled them down.

The draft treaty proposes that Japan is to be restored to full independence, without any restrictions on her military, political, or economic policies. That is all very well. But we have learned to our sorrow how the State Department uses the loveliest words and the most seductive arguments when it is offering the most questionable proposals.

It is all very well to set Japan "free," but we must be sure it is not like setting a young maiden free in a wood full of bloodthirsty bandits.

We must not set Japan free on terms which mean she will promptly fall into a trap carefully contrived by Communist Russia and her Chinese stooges.

Of course, this treaty is hailed by the administration as a glorious victory. It is peace in our time all over again. So subtly is this blueprint constructed, so smooth is the surface, that the whole burden of proof falls on its opponents to make clear why it is a mortal threat to our national survival.

My objections to the Japanese treaty draft can be put briefly. They are:

First. It validates the Yalta pact by giving the U. S. S. R. permanent title to southern Sakhalin and the Kuriles.

Second. It breaks the island chain of our defense in the Pacific, because the Kuriles are a link between the Aleutians and Japan. Used as a base, these islands give the Soviet union a break-through to the far Pacific island chain, on which our security rests.

Third. And this is astonishing—the treaty ignores free China. The State Department has invited 50 nations to participate, but has ignominiously left our free China, which fought Japan for 9 years before Pearl Harbor and all through World War II. Just think of that, Mr. President.

Fourth. The draft proposes that United Nations troops may be stationed in Japan. But who are the U. N.? After the so-called peace treaty has been agreed on in Korea and the climate of public opinion is prepared by propaganda, what is to prevent the Soviet Union from offering a sizable complement of Russian troops to "help" the U. N. in Japan? What could we do to stop this clever attempt to outflank Formosa?

Fifth. Japan is to be given complete "self-determination" to make whatever treaties she likes for political and economic purposes.

Japan's ability to support her overpopulation depends on her trade, which in the past was largely with China.

We step out, and Japan resumes her trade with Red China and entwines her economy with the Communists. Meanwhile, the fifth column in Japan carries on its political subversion.

How long will it be before Japan "freely" votes herself into the Soviet world Government? If she does not fall into the trap of her own free will, how long will it be before the economic squeeze or a military uprising, under the fifth column, forces her to go the way of China?

In mid-May I made a public statement quoting the formal peace terms placed by the Soviet Union before the U. N. Assembly on December 9, 1950. In that statement I pointed out the Soviet de-

mands were compressed into two simple-appearing proposals, which I now quote:

First. That all foreign troops be withdrawn from Korea.

Second. That the decision on the Korean question be entrusted to the Korean people themselves.

I pointed out at that time these demands constituted a brilliant strategic plan applicable to every country in the Far East. They gave the Soviet Union everything it could possibly desire in Asia. This new plan, or adaptation of an old plan, was devised by the Soviet strategists, when they found they could not push us—as planned—off the Korean Peninsula, because our fire power, even with all our political handicaps, was strong enough to overcome the advantages of their manpower.

Point 1 was designed to win withdrawal of all American forces in Asia, so that the small, defenseless nations of Asia could not protect themselves, and we could not help them train or equip armies of their own nationals.

Point 2 was designed to leave a free field for fifth columns and subversion from within. Once American troops were withdrawn, the fifth columns would be free to engage in political and military sabotage. Strikes and other economic sabotage could go on unhindered and could drain away the resources of their victims. When the time was ripe, the Soviet armies could strike, or, even more Machiavellian, the helpless Asian nations could be forced to vote themselves into the Soviet world government, and all Asia would be conquered without the firing of a shot.

Mr. President, the "self-determination of small nations" is a good principle, and one that has a special appeal to Americans; but the self-determination of South Korea, Formosa, Japan, or the Philippines would not be worth a continental against the new political warfare and the armed might of the Soviet Union.

This Soviet strategy is, in essentials, the pattern of General Marshall's 1945 solution in Asia. We were to withdraw our forces and leave all political questions to peaceful solution by the Chinese themselves. We did withdraw our forces and withhold our arms. We demobilized the Chinese armies, but the Soviet Union armed the Communists and encouraged the fifth column. The Reds tore up the railroads and stopped all economic recovery. Then, when we were deeply engaged in a Presidential election, the Communists gave orders for the final assault.

Mr. President, if you look closely you will see that the same two principles, withdraw foreign troops and leave political questions to self-determination, again underlie every step of the peace negotiations in Korea.

After our forces leave, the Communists in Korea will be rearmed, the fifth column will be reactivated, the Government of Syngman Rhee will be destroyed by internal sabotage, and, in the turmoil, the Soviet Union will take over. In the meantime, 20,000 American boys will have died, 80,000 will have been crippled and wounded, a million civilians will have died, and the country of our friends and allies, the South Koreans, will have been leveled to rubbish.

I say, the same two principles underlie the Japanese Peace Treaty, and they work to the same end, namely, the collapse of all the independent nations of Asia from within, their incorporation in the Union of Soviet Republics, and the establishment of a ring of Soviet bases from Alaska to Australia, on the island chain which should constitute our defense line against attack.

The immediate crisis in the spread or defeat of this plan for all Asia is the Japanese Peace Treaty. D-day is September 4, only a little over a week away.

Let us see how these two brilliant strategical principles, the military and the political booby traps, apply to the Japanese Peace Treaty.

Mr. Dulles—all Senators know who Mr. Dulles is. I believe he is the man who recommended Alger Hiss for a job on the International Peace Foundation. I believe he is the man who, on the floor of the United States Senate, said that, at a conference in England, they had debated for some time whether they should tell the American people the truth. I think all Senators know Mr. Dulles, the Wall Street lawyer. Mr. Dulles says we shall maintain in Japan forces of the United States and of the United Nations.

But let us remember what the U. N. is. Like Alice in Wonderland, sometimes it is tall, sometimes it is small. When we went into the Korean war, the U. N. had drunk of the bottle which made it small. The vast U. S. S. R. was not represented. But as soon as we were launched so deep in the Korean war that we could not turn back without the onus of defeat, the U. N. drank of the bottle, which made it grow again.

The U. S. S. R. came back to the fold, and, during most of the Korean war, U. N. political policies, the policies under which our men were fighting, and dying, were made by a council in which the Soviet Union and her satellites were very much in evidence.

Mr. President, you remember the television spectacle of last summer, in which Mr. Malik and the agents of Red China, speaking in the United Nations, descended to depths of vituperation against the United States, while their troops were killing our men and our Korean allies.

If we sign this Japanese treaty at San Francisco, permitting the same UN to station troops in Japan, how long will it be before the U. S. S. R. discovers that it ought to send a large, well-trained complement of Soviet troops to help the U. N. protect Japan?

Mr. President, how would you feel, if you were in the Nationalist Government on Formosa, and were told that the American occupation was to come to an end, and that Japan was to be left to the tender mercies of the Soviet fifth column, Soviet troops in Japan, and a few American and other forces nicely entangled in the spider web of U. N. How would you feel? If that is not a classic instance of military outflanking, what is it?

There are 8,000,000 people on Formosa and 80,000,000 people in Japan. If the Japanese can be sovietized in a few months by political, economic, or military means, what is the life expectancy of free China? Could Von Clausewitz have planned its military destruction more perfectly?

The military booby trap under the deceptive phrases of the peace treaty is now clear. The economic booby trap under those deceptive phrases is equally clear and equally simple.

The economic pitfall in the treaty is the fair-sounding condition that no barriers must be placed on the complete freedom of Japan to earn a living for her people. That is the self-determination clause of the Soviet peace terms all over again. Japan has had a surplus population for generations. She cannot support her excessive population on the arable land of her own islands. For generations she has supported them by exporting her labor at cut prices on the world market, and by acquiring more land and raw materials on the mainland, in Korea and Manchuria.

Japan's population problem is still acute. It has risen under our beneficent rule. The problem has been met in part, during the past 6 years, by American contributions for the government and relief of occupied areas. Once the peace treaty is ratified, Japan will suddenly be faced with an economic crisis. She needs materials from Manchuria, she needs market outlets in continental China. What can she do but make a commercial treaty with Red China, which controls the raw materials and the markets which her hungry people must have if they are not to die of starvation?

Mr. Vincente Villamin, Washington columnist for the Manila Bulletin, has told us exactly what will happen. He says:

> The draft treaty gives Japan the right to choose which China to negotiate her treaty of peace with.
>
> It is generally expected that she will choose Communist China—for she wants to revive her trade with that country.
>
> Those countries which have recognized Communist China would want Japan to deal with her.
>
> That action would virtually mean (1) recognition of the Communist Government, (2) acquiescence of the signers of the general treaty to the position of Communist China as legalized by Japan, and (3) enhanced prestige and popularity for Communist China which would serve her well when the General Assembly of the United Nations decides which China should be recognized in that world government.
>
> In other words, the action of Japan is bound to have the tremendous actual and psychological effects of putting Communist China forward as the legitimate government of China, and that would be the beginning of the end of Nationalist China.

Maybe you believe, Mr. President, that a plan of which the pieces fit together so perfectly, which is so skillfully designed to achieve the Soviet purpose, happened by pure accident. But I do not.

Maybe you believe, Mr. President, that every step in our State Department's peace plan for Japan fitted this Soviet design, but no one in the State Department was in collusion with the Soviet leaders. I do not believe it, Mr. President.

Maybe you believe, Mr. President, that our State Department sanctions a treaty which will force Japan to trade with Red China, but it does not intend to surrender Formosa to the Reds after the other powers vote them into the U. N.

Others may believe it, Mr. President, but I do not.

It is very difficult to understand the silence of our press, our Members of Congress, and our people, in the face of this sell-out to Russia, so soon after the loss of the Chinese mainland. But it is equally impossible to understand the silence over the new humiliation of our ally, free China.

Burma is invited to sign the new treaty, Mr. President; so are Ceylon and Indonesia, and the U. S. S. R., after 7 days of war with Japan. But free China, which fought against Japanese invasion for 13 years, is not worthy of an invitation.

It is a shameful fact that the only protest against the needless, inexcusable humiliation of free China comes from the Chinese themselves.

Dr. Hu Shih, distinguished former Ambassador from China, protested bitterly against the fact his country was offered this last cruel, gratuitous insult.

The Chinese people are deeply aroused. Young Chinese officers are committing suicide to escape the shame, but, as usual, nothing can be heard above the din of propaganda from our Government.

The Formosa government has pointed out that the draft treaty is not only contrary to international justice and honor but a specific violation of the U. N. Charter, and the first declaration of the United Nations, signed January 1, 1942, in which the signers agreed "not to make a separate armistice or peace with the enemies."

The British, like the U. S. S. R., demanded that the Peiping government be invited in place of free China which had fought for 13 years against Japan. Mr. Dulles flew to England and then announced his great victory—England was willing that neither free China nor Red China be invited.

Perhaps some people believe, Mr. President, that the British Socialist Government and Mr. Dulles accidentally hit upon the "compromise," which was exactly what the Soviet Union wanted, but I, Mr. President, do not.

Perhaps some people believe, Mr. President, that leaving free China out of the signatories of the Japanese peace treaty will help American prestige in Asia, but I do not. In fact, I think that, like so many acts of our State Department, it is perfectly designed to make our allies doubt whether they can any longer trust our country.

Of course, the Soviet Union has opposed the Dulles plan for peace in Japan. But they know that opposing it is the best way to get the program through without critical examination by our people.

The Soviet Union always has a trained chorus voicing opposition to every program our people work out for America.

The U. S. S. R.'s formal protests do show us, however, the strategic principles in which their policy always rests:

Keep the Yalta agreement.

Leave all the decisions to the five-power Council of Foreign Ministers set up at Potsdam, which means no unilateral action by the United States free from the Soviet veto power.

Recognize Red China.

Get the occupation troops out of Japan within a definite time and permit no American military base there.

They may gain their objectives quickly or they may work slowly, but the Communists will never compromise.

See how their proposals for Japan really fit the treaty.

First. Admit Japan to the UN.

Second. Obey the injunction in the Yalta and Potsdam agreements to eliminate "all obstacles to resurrection and strengthening of democratic tendencies among Japanese people" and open up "broad possibilities for development of peaceful economy."

Third. Remove all limitations with respect to trade of Japan with other states.

Fourth. All occupation troops will be withdrawn from Japan territory in course of not more than 1 year, and no foreign state will have troops or military bases in Japan.

The Soviet leaders do not want to stop this treaty. The present talk is merely a distraction to turn the attention of the American people away from the fact that the Japanese draft treaty gives the Soviet Union everything it could possibly desire.

A provision in article 26 permits any state which does not sign the draft treaty—note this, Mr. President; we have to dig for this stuff; we will not find it in the press—to conclude a bilateral treaty of peace on the same terms.

Is that not neatly tailored to let Soviet Russia come in quietly a few months after the signing?

At the moment the Soviet leaders have decided to attend the signing, but their purpose is not to block the signing, but to confuse Americans and make them agree to the signing quickly without examining what the treaty does.

The Communists want to raise the dust in Asia, make it hard for us to see what is actually going on, while their fifth column in our Government, and our press tells us all is well. Then when our minds are diverted they will spring the trap.

The Soviet Union started the final push against free China while we were distracted by the political campaign of 1948. What better time could they choose for the final push against the rest of Asia than the political campaign and the impending economic crisis of 1952? That will give them a year of peace to complete their plans for the undermining of Japan and the other helpless nations of Asia.

The Communist fifth column in prewar Japan was almost as strong as that in prewar China.

Bernard Pares, the historian, says the military rebelled in Japan in the thirties because they saw no other way to save the nation from rapid Communist infiltration—just as they did in Germany, Italy, Hungary, Austria, and Spain.

We know something of the power of the Japanese fifth column from the famous Sorge case. The confidential adviser of the wartime premier of Japan was an active agent of the Moscow apparatus. He worked with Sorge, the secret Communist, who was a trusted confidant of the gestapo in Japan.

When General MacArthur went to Japan, the State Department, under Under Secretary Acheson, tried to run the occupation. State Department officials whom General Hurley ordered sent back from China because they favored the Communists, were promoted to higher ranks in the Japanese area, and Acheson curtly reminded the general that the civil power (meaning his State Department subordinates) outranked the general.

Owen Lattimore gave General MacArthur the benefit of his economic wisdom on breaking up Japan's economy. The economic agencies, the public relations, and press agencies of the occupation were well supplied with Communists, one of whom later became a columnist for the Daily Worker. Newsprint was cleverly allocated so that a rash of new papers received a large share of the newsprint supply to build up the Communist press. Former Communist leaders headed labor unions, which had the powers of our unions under the Wagner Act.

General MacArthur handled the fifth column in Japan with his characteristic skill. But after the Japanese Communist Party went underground, the combined efforts of the American security forces and the Japanese secret police could not locate the hiding place of their leaders. They still continue to publish Communist newspapers printed on hidden printing presses.

Now the Communist apparatus is devoting all its efforts to teaching the Japanese to hate the occupation. The Soviet strategists can quickly add many recruits to their hidden armies. They have the Japanese troops captured in China.

Prof. Thomas George in an excellent article in Modern China, adds two other groups. There are a half million Koreans in Japan, and he says "a very great number of them are Communist." There also are many thousands of Japanese-speaking North Koreans who have been indoctrinated by the Communists for 6 years.

Both these groups are being brought into Japan by way of Hokkaido Island, which is close to Russia's territory on Sakhalin Island. Its people are poor and discontented with their place in the Japanese political economy.

When Soviet leaders are ready to turn to military action, they will have all the forces they need. For the short run they can accomplish just as much by offering Japan a nonaggression pact, which the Japanese may be very ready to accept. Neutralism will be as attractive to the Japanese is it is to the French and British, under the same type of confused socialist leadership as in Britain.

Let us not be sentimental. How would the situation look to you if you were Japanese?

In Korea the Armed Forces of the United States have been held to a stale-

mate—because of our State Department to be sure—by a people whom the Japanese had conquered and despised.

We made the fatal error of fighting the Korean war on the territory of our ally, not that of our enemy.

President Truman said recently that if the Red Chinese did not extend the war, we would not extend it. Why should the Chinese extend the war to China? They are delighted to fight the war on Korean soil, destroy Korean roads and bridges and houses, kill a million of their civilians.

When does an enemy try to carry the war to his own soil? It was our responsibility to bring the war to Red China, by air and sea, as General MacArthur suggested, if only to relieve the pressure on our allies, the South Koreans, if only to reduce the Korean casualties and let the Red Chinese bear the brunt.

Imagine the President saying in 1944 that if the Germans would only fight the war on French soil and not on German soil, we would not press the fight on their homeland. But that is exactly what President Truman said about the Red Chinese in Korea.

What would you think, if you were Japanese? You would say, "If the Soviet Union attacks us, the United States will not carry the war to Siberia. It will keep the fight on our soil. We will have a million casualties while the Russians have very few. Of course a treaty of neutrality would be better than that."

Professor George tells us how they reason:

So we sign a peace treaty with the United States, and with as great a number of western powers as possible.

Once we have our sovereignty we can arrange a total neutrality in the big dispute between the east and west: through formal or informal commercial agreements with Red China, get raw materials from Manchuria, and the Chinese mainland for our industry, and then wait and see—the United States is too strong to be completely beaten by Soviet Russia.

The Soviet Union is too strong to be beaten by America.

So their mutual clash will probably end in a mutual exhaustion, if not destruction—and then Japan as the only one industrial and consequential power in Asia, will have again a totally free hand over all Asia.

Do Senators wonder that Professor George says:

Even the leading political, industrial, and military circles of Japan are able to unconsciously play into the Communist hands.

But what are the leading political, industrial, and military circles of the United States doing to save us from the obvious booby trap? We are beguiled by sugary words while our survival hangs in the balance.

A college professor on Taiwan sees it plainly, but what do our journalists and generals and statesmen see?

Professor George says:

Japan is, of course, of tremendously great importance to Communist global strategy.

It (Japan) would give to world communism the greatest industry in the Far East.

It would be sufficient to feed all the Red armies of Asia with armaments, and so precipitate the communization of all Asia.

Mr. Owen Lattimore, whose writings gave us useful clues to Soviet strategy, says in the Nation:

The industries of Japan were largely designed to consume the raw materials of China, especially Manchuria and North China, but also the Yangtze Valley, South China, and the iron of Hainan Island.

And he adds, significantly:

Machinery made in Japan from Chinese raw materials offers the cheapest kind of capital goods that China can obtain from any source, and Japan can deliver goods to China at all the seaports instead of over one railway line that enters China from Siberia.

Could anyone ask for a better picture of why Japanese industrial skill and Japanese shipping are essential to Soviet military strategy?

So we come to another curious fact. Article 14 of the treaty says that Japan is not to pay reparations as such, but she is to compensate any countries she occupied in the last war by making available "the skill and industry of the Japanese people in manufacturing and other services to be rendered to the Allied Powers in question."

The injured nation is to supply the raw materials and the Japanese are to process them.

That clause is usually supposed to refer to the Philippines. But does it not fit Red China exactly? China was an occupied country. If Japan makes a commercial agreement with Red China, will she not be obliged under the treaty to process Chinese materials as a form of reparations for the occupation of China? Does that not fit exactly Mr. Lattimore's picture of Japanese industries developed to use Chinese cotton and iron, and able to deliver equipment to every port in China?

Professor George concludes:

Japan's disorganization through infiltration and subversion will eliminate Japan as a western base in the Pacific and free the Communist flank, and Red forces can then freely proceed southward through Formosa, the Philippines, Indonesia, and Australia, and eastward toward Alaska, Canada, and the United States.

Do Senators remember how the administration slept through the warnings about Pearl Harbor? Do they remember how General Marshall, then Army Chief of Staff, did not think it important to warn General Short by radio that fatal Sunday morning?

Do they remember how the administration slept through the fall of China, while they waited for the dust to settle?

Do we not see now why the Soviet peace terms of December 9 lead straight to the booby trap in which we are to be entangled while the Soviet Union swallows all the rest of Asia and advances toward our own Pacific coast?

What can we in Congress do about it? It is not the primary task of Congress to administer foreign policy, but under the Constitution the Senate must approve any peace treaty before it becomes law, unless the settlement is surreptitiously transferred to the United Nations.

Both the Senate and the House have responsibility for any funds needed to implement the treaty or pay the personnel engaged upon it.

This treaty will go into effect whether we approve it or not. If we are high-pressured into signing quickly the wheels will start moving for Sovietization of Asia.

But if we refuse to sign, then 26 nations, like India, Pakistan, Ceylon, and the rest can sign and the treaty will go into effect. They do not need us; 26 of the 50 can do it.

Our occupation will be ended. Our troops will be out of Japan, and Japan will make her treaties with Russia and China. We will be helpless, a laughingstock.

It is, however, unfair for the American Congress to let 50 nations send representatives to San Francisco to sign this document, and then try to oppose it months later. It is our duty to decide upon our position now, and to state it in unequivocal terms. It is our duty to lay down the principles on which our foreign policy shall rest, and then compel our executive agencies to obey the law.

I propose, Mr. President, that all the Members of this body who are opposed to another sell-out in Asia join together to issue a formal statement of conditions under which they will ratify a peace treaty with Japan.

I tentatively propose the following principles, Mr. President, and ask all of my colleagues who want to stop this false peace to join with me in perfecting this statement.

I propose, Mr. President, that we agree to no peace treaty with Japan unless it—

First. Repudiates the Yalta agreement and refuses to validate the Soviet claim to the Kurile Islands and South Sakhalin.

Second. Preserves intact the island chain from Alaska to Australia.

This island chain not only preserves our defenses without the necessity of war, but it also sets up a zone within which the smaller nations can rest secure from aggression by any great power, as the nations of this hemisphere have been secure for over a hundred years.

Third. Includes free China as a full partner, permitted to take part in every conference and to approve or disapprove every separate proposal.

Fourth. Reserves Japan as a base for American forces, not those of UN, which includes Russia and her satellites.

Fifth. Provides that Japan will make no trade treaties with Red China or the Soviet Union, and ship no war materials to the Soviet sphere.

Sixth. Furnishes a sound economic plan by which the Japanese people can earn a living without falling into the Soviet trap.

Seventh. Furnishes a sound military plan by which we can help strengthen the free nations of Asia with arms and training while we build up an air and sea force—without setting up any overhead monstrosity like NATO.

If this means a show-down over UN, Mr. President, I am ready for it. It is long overdue.

Such a program cannot, of course, be made by letting our State Department send its agents pussyfooting all over

Europe and Asia, conferring secretly with this official and that, and calling their careful selection of the conclusions they like, a democratic way of getting agreement.

A good American program can be made only by strict adherence to principles laid down by this body, subject to full and open debate by other nations which are truly our partners.

This is not a Republican issue, Mr. President.

It is not a Democratic issue.

The Constitution wisely provides that no treaty can become law with the consent of the majority party alone.

The issue here is national defense.

It is national survival.

It is a test of the ability of free nations to out-think and out-wit the Soviet political general staff.

Someone must oppose this diabolical Soviet plot with a counter-strategy.

The administration cannot do it, because its thinking is either so hazy or so deeply influenced by the Communist bloc, that it cannot recognize an American program.

The people cannot act.

The whole responsibility for protecting our country against this blueprint for our destruction falls on us.

The time is short.

The administration plans to get international approval for this dangerous treaty about September 4, just after a long week end, a familiar totalitarian device.

The newspapers have been silent, the people have not been alerted.

The Government's propaganda machine is busily at work underground filling our magazines and journals with saccharine articles about peace-loving nations and hatred of aggression, all set to bloom in the issues of late August and early September.

For 18 years, Mr. President, the American Congress has been in retreat before the growing forces of absolute power, which are hiding behind the once beloved forms of the American Government.

Now we know that the Communists are deeply entrenched in the military planning and the foreign policy-planning of the administration which have led us to our present low estate.

We have had slogans, Mr. President. We have had the slogan, "He kept us out of war." We have had other slogans. This is the first time in American history that we have had an American President whose slogan is, "He kept us out of peace."

It is time, Mr. President, for the Senate to take its stand, to announce to our military and foreign policy agencies that we will never again tolerate any program which has within it the slightest taint of communism and that we propose now to rebuild American defense and American foreign policy from the ground up and in the American pattern.

Mr. WHERRY, Mr. KNOWLAND, and Mr. MALONE addressed the Chair.

The PRESIDING OFFICER (Mr. MOODY in the chair). Does the Senator from Indiana yield; if so, to whom?

Mr. JENNER. I yield first to the Senator from Nevada.

Mr. MALONE. Mr. President, does the distinguished Senator from Indiana agree with the junior Senator from Nevada that it is planned that, within a very short period of time after the consummation of the Japanese peace treaty, Japan will recognize Communist China?

Mr. JENNER. Of course that is true. She will have to recognize Communist China if she wants to survive and to keep her people from starving. Japan is overpopulated, and the population is increasing. China has always been one of her normal trade outlets. She must trade with China. In order to trade with her she will have to recognize her. That is what England will insist on.

Mr. MALONE. Mr. President, will the Senator yield further?

Mr. JENNER. I yield further.

Mr. MALONE. Is it not a part of the plan of silencing England's original objections to the treaty, that it would allow Japan to sell her textiles and other products throughout the areas in markets generally enjoyed by England? Is it not also true that that part of the plan, the plan to admit Communist China to the United Nations, started when England herself recognized Communist China?

Mr. JENNER. That is exactly right.

Mr. MALONE. Mr. President, will the Senator further yield?

Mr. JENNER. I am glad to yield.

Mr. MALONE. Does the Senator from Indiana agree with the junior Senator from Nevada that we have been engaged, and probably will be shortly engaged again, in another Yalta at Kaesong, which will complete a deal which will keep us from any further interference in Russia's consolidation of her gains in Communist China and through China to gain control of Asia?

Mr. JENNER. That is what I said. I said it is another sell-out on China.

Mr. MALONE. Then, Mr. President, it is plain that the administration, starting with the recognition of Communist Russia in 1933, furthering the world plan at Yalta, Tehran, and Cairo, and completing the job at Kaesong, Korea, where under the conditions we can only agree to permit Russia to consolidate her gains in and put the Communists in control of China—and then all of Asia.

The Japanese treaty is just another step to complete the job through the recognition of Communist China by Japan following the approval of the Japanese treaty.

Mr. WHERRY subsequently said: Mr. President, I have listened very attentively to the whole of the speech delivered by the Senator from Indiana [Mr. JENNER]. The Senator from Indiana has raised some very important points in connection with the Japanese peace treaty, especially relative to the mechanics of its ratification. The Senator from Indiana has placed the Members of the Senate on notice as to what our full responsibilities are. I hope that each and every Member will give the remarks made by the Senator from Indiana, at least those relative to the mechanics of the ratification of the peace treaty, their very careful consideration.

Mr. KNOWLAND. Mr. President, I had not intended to speak at this time on the Japanese treaty, and I do not intend to delay the Senate for any extended period. However, I believe it is important to bring out several points with regard to the treaty.

I believe that no Senator has been more critical of our far-eastern policies in the past than has the senior Senator from California. I disagree with the remarks of the Senator from Indiana, however, in his interpretation of the end results of the Japanese treaty. It has been my privilege to go to Japan on three different occasions; once in early 1946, shortly after I came to the Senate, and while a great deal of war damage was still evident in Japan; again in November 1949; and the last time in November of last year.

Mr. President, no person could go to Japan without recognizing what tremendous strides had been made under the leadership of Gen. Douglas MacArthur, not only in rehabilitating the economy of the country, but in setting the Japanese people well on the way to a more democratic and constitutional form of life. I do not believe anyone is so naive as to believe that Japan has completely adopted all the fundamental democratic concepts which we have in this country, with our traditions under the Constitution, with our traditions under the Magna Carta, and with our inheritances from constitutional government in Great Britain.

However, I do believe that they have made substantial progress. If we do not mishandle the situation I believe we have more than a reasonable chance of having Japan become one of the nations allied with the free world in the very troubled times which lie ahead.

In the negotiations on the Japanese treaty I believe Mr. Dulles has made every effort, both prior to the actual working out of its terms to consult with Gen. Douglas MacArthur. I have believed that General MacArthur has a better background in regard to conditions in Japan and the Far East than has any other living American.

Personally, I think it was unfortunate that General MacArthur was not invited to be a member of the American delegation, rather than merely being invited to speak there. Nevertheless, it was General MacArthur's clear view, when I saw him on several occasions in Japan, that the occupation as such had lasted long enough, that we had made all the progress which could reasonably be expected during the period of the occupation, and that any continuation of it was likely to be detrimental not only to the Japanese people but also to our future relationships with them.

Mr. President, as I pointed out, in the past I have been critical of our Far Eastern policy. I think we were too slow in recognizing the importance of the Pacific area. In the Far East there are a billion and a quarter people, more than half the world's population. In the Far East there are vast amounts of the world' resources, without which there cannot be a free and prosperous world. It is im-

portant that conditions of stability once again exist in the Far East.

I believe we are making the first faint beginnings in that way with the mutual assistance pact which has been proposed between Australia, New Zealand, and the United States, and with the mutual defense pact with the Philippines. These are merely beginnings in that area of the world, but I certainly believe they are steps in the right direction, and are long overdue.

I quite agree with the Senator from Indiana as to the importance of Japan in the future picture in that area of the world. I believe Japan has been and is the principal target for ultimate Soviet aggression in the Far East. However, I differ with the Senator from Indiana, in that I think we can make our greatest contribution to keeping Japan out of the Soviet orbit if we promptly ratify the treaty which will soon be signed at San Francisco, and which I hope will be ratified by the Senate of the United States. If Japan once again becomes a self-respecting member of the family of nations, with her 80,000,000 people and her vast productive enterprises, I believe Japan can make a great contribution to the free world, to its own economic well-being, to its own self-defense, and to the taking of the necessary steps in the mutual defense of both the Pacific and the Atlantic.

The alternative is to reject the Japanese Treaty and to continue our occupation of Japan. I do not believe that would be sound. I am quite sure that General MacArthur himself believes it would not be wise for us to continue the American occupation, as such. Of course, I do not claim to be able to speak for General MacArthur, but I think he has made that point perfectly clear.

Mr. President, I believe that Mr. Dulles, along with the State Department, has considered the various problems involved in making a treaty with Japan. The problem of reparations, which the Senator from Indiana mentions, grows out of the natural feeling of the people of the Philippines. Those of us who have been to the Philippines recognize the fact that great damage was done to that country. No nation can go through an occupation and warfare such as that through which the Philippines went without having tremendous damage done.

The people of the Philippines rather rightfully felt—at least, from their point of view—that the persons who did the damage should help restore their country. Yet, Mr. President, a practical problem was involved. We knew that the reparations payments in Europe, as a result of World War I, only led to economic collapse in Europe. We do not wish to see that experience repeated following World War II.

Furthermore, we know that in the period following World War II, the United States has had to put a tremendous amount of its resources into the former enemy countries of Germany, Italy, and Japan, in order to rehabilitate them. We also know that if there were to be dollar reparations, as a practical matter the people of the United States would pay those reparations. So we frown on reparations, in that sense of the word.

Mr. WATKINS. Mr. President, will the Senator yield?

Mr. KNOWLAND. If the Senator will permit me to do so, I should like to complete my statement first; and then I shall be glad to answer any questions.

Mr. President, we felt that there was an opportunity for some of the nations which had been greatly damaged in the war and had natural resources in the form of raw materials, but did not have sufficient industrial capacity, to obtain a more modified type of reparations by having the Japanese manufacture raw materials into finished goods, and return them to the war-damaged country, so that in that way it would at least be compensated to some extent and would be helped in the work of restoration, following the damage which had been done to its over-all economy.

The question of bases was not overlooked by Mr. Dulles in the treaty negotiations. To the contrary it is expected that there will be a bilateral agreement. I think no Member of the Senate need doubt that the Japanese will negotiate with the United States a bilateral agreement relative to certain American bases in Japan, bases which are necessary at the present time not only for the defense of Japan against potential aggression from either Communist China or the Soviet Union, but also as a matter of protection of the free nations in that area of the world.

So, Mr. President, I hope the Members of the Senate will very carefully study this situation in its over-all aspects and will recognize the fact that our great commander, General MacArthur, who was there so many years, himself appreciates the importance of bringing the occupation of Japan to an end.

I also hope that Senators will realize that the Japanese in their parliamentary elections cast an overwhelming vote against the Communist candidates for office. I believe the Communist candidates for office had, in the last elections of which I had knowledge, polled somewhat less than 5 percent of the total number of votes. That is as good a record, if not a better one, as that of several of the countries of Western Europe. Certainly it is a much better record than that of France, where the Communists polled somewhat in excess of 25 percent of the total vote, as I recall.

So, Mr. President, for opposite reasons than those stated by the Senator from Indiana I believe that it is essential that a very prompt ratification of the treaty occur in order that Japan may be brought into the orbit of the free world.

Japan has an important part to play. Certainly if we are to maintain any conditions of stability in that area of the world I think we must have Japan, Formosa, the Philippines, Australia, New Zealand, and a number of the other free nations of the Pacific area in intimate association.

If any one of those areas should fall under the domination of communism, I think that would impinge upon the defense line, and probably all of Asia would be in danger of going behind the iron curtain.

At times when there has been very little discussion of the importance of the Pacific I have tried, on numerous occasions, to bring home to the Senate and to the people of the United States the fact that we were overlooking, and were being apathetic to, the critical conditions existing in that area of the world. I think we made a serious, if not fatal, mistake when we directed our attention to Europe and very little to Asia during the years which have recently passed. When I say that, at the same time I desire to point out that I have never maintained that we should have an Asia-first policy. I have never contended that we should direct our attention to Asia to the exclusion of Europe. But I have felt that international communism was aggressive and global in character, and that it did not make very much sense to close the door to communism in Europe while the door was being left wide open to it in Asia.

At a very late hour the administration has come to recognize the importance of the Far East. This awareness is partly due to the aggression which took place in Korea. But by the time the Korean aggression had taken place, 400,000,000 people of the Republic of China, which had been our historic friend and wartime ally, had passed behind the Communist iron curtain.

The hour is very late. We cannot unscramble the eggs which have been scrambled in the Far East; but I believe we have an opportunity, even at this late date and hour, of salvaging something for the free world in that area of the Pacific. In order to save what is left of Asia for the free world, it is necessary to have a free Japan, to maintain Formosa outside of Communist hands, and to give aid and support to the Republic of the Philippines and other nations in Asia which desire to resist communism.

If we do not do this, Mr. President, 1,250,000,000 people of Asia will be finally digested and mobilized into the forces of international communism and the vast resources of that area of the world will be directed into the war-making potential of international communism, to be used against the free world. If that sad condition should result, I doubt very much, Mr. President, whether Europe, even with all the aid and assistance we are giving, could stand up against the great power that would be lodged in the hands of international communism. For that reason, Mr. President, I intend to support the ratification of the Japanese Treaty.

Mr. WATKINS. Mr. President, will the Senator yield?

Mr. KNOWLAND. I yield to the Senator from Utah.

Mr. WATKINS. I agree with a great deal of what the Senator has said about the Japanese treaty. I think that, on the whole, it is a good treaty. I like particularly the features which do away with the idea of revenge, and I am not opposed to it because it does not exact reparations. I believe the Senator to be correct in his summation on that point.

But I should like to ask the Senator with reference to the Philippine demand

for reparations. Is it not true that the United States has already expended vast sums on the rehabilitation of the Philippines?

Mr. KNOWLAND. The facts will speak for themselves, but I may say to the Senator from Utah that there is no doubt we have expended a very considerable amount in the rehabilitation of the Philippines. I may also make an addendum to say that I do not believe all of it has been wisely expended; and, as the able Senator knows, I have always taken the position that, in the aid which we give to other countries, whether they be in Europe or in China—or whether it be the Philippines—no aid should be given unless there is very close supervision of the amounts expended. But a great deal was done in the program in the Philippines, to rehabilitate public buildings, for instance. If the Senator is ever interested in it, I have a whole series of pictures of what was done in the capital city, Manila, and in most of the provincial capitals, in rehabilitating public buildings of various kinds. A great deal of help was given in other ways; but, nevertheless, it did not undo the damage which had been done as a result of the war.

Mr. WATKINS. With respect to the approval of what was done at Yalta, has the Senator investigated the Japanese treaty to see whether it actually, in a way, impliedly endorses or affirms the Yalta agreement, at least with respect to the conditions imposed upon Japan?

Mr. KNOWLAND. I stated, I had not intended to speak on the Japanese treaty at this time, and at a later date, I intend to discuss it more fully. It is the position of the senior Senator from California that the Japanese treaty, as soon to be presented to the San Francisco Conference, in no wise endorses the Yalta agreement or the conclusions of the Yalta agreement.

Mr. WATKINS. Has the Senator considered the fact that Russia is now in possession of the Kurile Islands and the southern part of Sakhalin Island, which were given to it by the Yalta Agreement, and is not their possession by Russia, and Japan's being deprived of them, a confirmation or an affirmation of that agreement?

Mr. KNOWLAND. I think not, because I believe other conferences took place which tie into the action which was taken, rather that the question was settled solely by the Yalta agreement. I would be very much opposed to anything which would give any ratification to the Yalta agreement. Personally, I think that, long before this, the administration of this country, the President and the State Department, should have denounced the Yalta agreement. I think it was ill-considered. In my opinion we lost some of our moral leadership of the world when the administration entered into the agreement at Yalta. Mr. Harriman to the contrary notwithstanding, we gave to the Soviet Union that which it was not ours to give. We gave it without the knowledge or consent of the American people, or of the American Congress. We gave it without the knowledge or consent of the Republic of China and its government; and I think it is morally indefensible. I think it is not in keeping with the high-sounding phrases of the Atlantic Charter.

In a way, I am very sorry now that Mr. Harriman did not appear before the two committees when they were sitting jointly, because I should have liked to ask him how he squared the provisions of the Atlantic Charter with those of the Yalta agreement. But, as I have said to the Senator, I intend to discuss the Japanese Treaty more fully at a later date. I did feel, in view of the statement of the able Senator from Indiana, that I should make a brief statement at this time.

Mr. WATKINS. I may observe to the Senator from California that I have made some study of the Japanese Treaty, and particularly of the implications which grow out of the taking away of these islands from Japan, and giving Russia possession. One of the implications, it seems to me, is that it throws the whole situation in doubt, and it might possibly be construed by Russia as a confirmation and affirmation of the Yalta agreement. For that reason, I made a statement on the floor of the Senate recently on the subject, and I intend to offer a reservation to the resolution of ratification of the treaty, which will make it clearly understood that it is not intended in any way, shape, or form as a confirmation or ratification of the Yalta agreement, at least with respect to Japan.

Mr. KNOWLAND. I wish to say that; while I disagree with some of the remarks of the Senator from Indiana, I think he is rendering a service; and the able Senator from Utah is doing a service in seeing to it that at the proper time the treaty will be fully discussed; and I believe it is certainly proper to have a preliminary discussion of it now.

I firmly believe in our constitutional system. I think we would have found ourselves in a great deal less trouble if, instead of the Executive agreements, we had required, and the President had followed the constitutional process of submitting treaties to the Senate for ratification. I do not think the Senate, for instance, would ever have ratified the Yalta agreement. I might say, in passing, I do not think that any Republican President, from Abraham Lincoln to Herbert Hoover, would have been a party to the Yalta agreement; but that is merely a matter of personal opinion. At any rate, I think we shall get into much less trouble if we proceed in the constitutional way and require the ratification of treaties by the Senate of the United States. Certainly it is entirely proper—and there are bound to be honest differences of opinion, and no one can be infallible in these matters—that they be thoroughly discussed in this great forum of the Senate of the United States. I hope that others who have views on the subject, whether they be favorable or whether they be opposed, will make their views known from time to time, up to the point of action by the Senate on the treaty.

Mr. WATKINS and Mr. JENNER addressed the Chair.

The PRESIDING OFFICER. Does the Senator yield, and if so, to whom?

Mr. KNOWLAND. I will yield first, to the Senator from Utah in order that he may finish his questioning.

Mr. WATKINS. Will the Senator agree that now is the proper time to give what advice we have to the administration regarding this treaty?

Mr. KNOWLAND. Oh, I agree entirely; and I certainly would not want my remarks to be interpreted as indicating that I was critical of the Senator from Indiana for discussing the subject. I merely wanted, at the time he was speaking, to present a different point of view. The Senator from Indiana may be right, and I may be wrong; he may be wrong, and I may be right. The truth may lie somewhere in between. But at least there is a different point of view from that expressed by the Senator from Indiana.

Mr. WATKINS. Would not the Senator agree that, if there is any doubt about the meaning of the treaty, as to whether it actually approves and confirms the Yalta agreement, we ought to make it clear by a reservation that we do not intend to approve or confirm the Yalta agreement?

Mr. KNOWLAND. The question should be fully explored, and if there is any reason to believe that by the terms of the treaty the Yalta agreement will be ratified, I certainly think a reservation would be in order. The question should be very fully explored and discussed on the floor prior to the time the treaty comes to the Senate for ratification.

Mr. WATKINS. I agree with what the Senator has said about the duty of the Senate to go into these questions, for if the Yalta agreement and other agreements had been submitted to the Senate what happened in many parts of the world would have been quite different.

Mr. JENNER. Mr. President, will the Senator yield?

Mr. KNOWLAND. I yield to the Senator from Indiana.

Mr. JENNER. I should like to ask the distinguished Senator from California whether he is in favor of the recognition of Communist China and her admission to the United Nations.

Mr. KNOWLAND. No; I am very much opposed to it. As a matter of fact, if the Senator will permit me, I think that our State Department has been very lax in not making a forthright statement that it would use the veto, if necessary, to keep Communist China out of the United Nations. It would be intolerable to permit Communist China to shoot her way into the United Nations.

Mr. JENNER. Does not the Senator realize that under the proposed treaty draft Japan will be forced to recognize Communist China, that she will be forced to trade with her, that her economy will be entwined with that of Communist China, that it will not be possible for Japan to be against China's coming into the United Nations? We have spent billions of dollars in trying to rehabilitate Japan, and we expect her to do that which we do not dare to do.

Mr. KNOWLAND. I do not think there is any necessary connection between the admission of Japan into the

United Nations and the admission of Communist China. The free world has far more to gain by having Japan become a member of the United Nations and having her tied in with the free nations of the world than having her tied into the Soviet orbit. That is fundamental. I do not think we would disagree on that. The question is as to the best means of achieving it. I think that by giving freedom to the Japanese people, who have elected a non-Communist government, as a matter of fact, a conservative government, by an overwhelming vote, and by making them feel their responsibility through permitting them to participate in the activities of the free world, we have a much better chance of holding Japan to the free world than if we refused to ratify the treaty. If we continue our occupation for 5 or 6 more years, when even General MacArthur believes the occupation has lasted long enough, and then the dissident elements start using their propaganda against the occupying power, because occupying powers in time become unpopular, the result may well be very unfortunate.

Mr. JENNER. Is the Senator in favor of America giving up her bases, and letting the United Nations take over the occupation?

Mr. KNOWLAND. No. I do not believe that is the alternative.

Mr. JENNER. Does the Senator think the treaty will provide for that?

Mr. KNOWLAND. No.

Mr. JENNER. Does the Senator believe the treaty validates the Yalta agreement?

Mr. KNOWLAND. No, I do not.

Mr. JENNER. I notice that we are going to give some consideration to modifying the Italian treaty. I remember that some months ago the same propaganda, the same line now connected with the Japanese peace treaty, was presented in regard to the Italian treaty, in ratifying which we made a terrible mistake. I voted for it, and the senior Senator from California voted for it. As a matter of fact, there were only 10 Senators who voted against it. Yet, I think it is the consensus of the thinking people of America that it was a bad treaty and that it will have to be corrected. I do not want my Nation to enter into another bad treaty which means a complete sell-out of all Asia to the Communists.

Mr. KNOWLAND. I will say to the Senator from Indiana that he does not need to pound his desk when he looks at me in connection with that point, because I voted against Dean Acheson as Secretary of State.

Mr. JENNER. Would the Senator mind including me also in the list of those voting against him?

Mr. KNOWLAND. I have been as critical of our far eastern policy as has any other Senator on the floor. I think we have made mistakes in the past. I believe one of the problems and responsibilities of intelligent citizens and public officials is to try to learn from past mistakes. I believe Mr. Dulles has given consideration to some of our past mistakes which we made in World War I and in World War II. Personally, if I had the decision of the matter I would much have preferred having the Republic of China sign this treaty.

Mr. JENNER. Does the Senator think it is right completely to ignore free China, who fought the Japanese and the Communists for 13 years? Does the Senator think that in order to appease Great Britain we should take the compromise proposition of Mr. Dulles? Does the Senator think it is right for 50 nations to determine Japan's future and completely ignore free China? Does the Senator think that is the right thing to do?

Mr. KNOWLAND. No; I think a mistake was made——

Mr. JENNER. That is what is proposed.

Mr. KNOWLAND. But I also say that the question of bringing about the end of World War II cannot necessarily be achieved purely on a bilateral basis. I think there is——

Mr. JENNER. But the treaty——

Mr. KNOWLAND. If the Senator will permit me to finish, I think there is great value in having as many nations as can be gathered together to give their approval to the signing of the peace. The Senator from Indiana thinks the Soviet Union is not opposed to this treaty. Personally, I differ.

Mr. JENNER. I said they would be opposed to it, but, on the other hand, they would not be opposed to it if they thought it was going to be adopted. We are playing right into their hands, because the Japanese economy has to be tied to the Communist economy. They cannot trade or live with people and not have their influence creep in. There will be no American bases. If there are any troops left, they will be United Nations troops, and Russia will say, "We want to help, too." There are plenty of Communists in Japan. There are a few more there than there are in this country, and there are plenty in this country.

Mr. KNOWLAND. I do not think I misunderstood the Senator's statement or the general context of it. There is that point of view, and the Senator is entitled to it, namely, that the Soviet Union, if it did not think the treaty was bad, would be going through the movements of opposing it, but secretly they hope it will be approved.

Mr. JENNER. They are praying it will be approved.

Mr. KNOWLAND. I disagree with that point of view. I think the Soviet Union is coming to San Francisco for the purpose of sabotaging the conference, for the purpose of doing all the disrupting they can of the type Mr. Malik does whenever he gets to be Chairman of the Security Council. I think they are going to use it as a sounding board and try to do everything they can to disrupt the proceedings, because, fundamentally, I think the thing which the Soviet Union wants least of all is for Japan to be associated with the free nations of the world. That is the last thing that international communism and the Soviet Union want.

I think we have a better chance of preserving Japan to the free world by the prompt ratification of the treaty than we would in keeping Japan in an occupation status for an extended period of years.

Mr. McFARLAND. Mr. President, as bearing on the discussion which has just taken place I ask unanimous consent to have printed in the RECORD an article entitled "Key Japanese Role Seen by MacArthur," regarding the treaty with Japan, containing correspondence between the Prime Minister of Japan and Gen. Douglas MacArthur.

There being no objection, the article was ordered to be printed in the RECORD, as follows:

[From the New York Times of August 24, 1951]

KEY JAPANESE ROLE SEEN BY MACARTHUR—GENERAL, IN REPLY TO YOSHIDA, VOICES SATISFACTION IN PACT RESTORING NATION'S STATURE

General of the Army Douglas MacArthur has predicted that Japan, restored by a peace treaty to full stature in the family of nations, cannot fail to exercise a profound and beneficial influence upon the course of events in continental Asia.

His view was expressed in an exchange of letters with Japan's Premier Shigeru Yoshida, made public here yesterday.

The former supreme commander of the allied occupation of Japan and a leader of the military forces that destroyed Japan's war machine warned that so long as existing international tensions exist in Asia, adequate security forces should be maintained to safeguard Japan's internal peace against any threatened external attack.

Declaring he rejoiced with Premier Yoshida and the Japanese people that a fair and just treaty is projected for early consummation, General MacArthur told the Japanese leader the treaty was to him a source of immense personal satisfaction in that the spiritual and moral values which throughout have guided the formulation of occupation policy will find a permanent reflection in the instrument designed formally to restore the peace.

Mr. Yoshida's letter, dated July 13, informed General MacArthur that the text of the projected treaty had been made public in Japan that day.

"On this joyful day, I desire to express the profound gratitude of myself and my Government to you who have been long a vigorous proponent of an early peace for Japan," Mr. Yoshida wrote. "It is gratifying that your efforts and exhortations have borne fruit. A fair and magnanimous treaty has been written embodying the principles as laid down first by you. I only regret I cannot see and thank you in person."

In issuing the exchange of letters for publication, Maj. Gen. Courtney Whitney, who is General MacArthur's chief personal adviser, said that the peace treaty was based upon "the principles that General MacArthur had been advocating for 3 years."

Following are the texts of the letters:

YOSHIDA TO MAC ARTHUR

JULY 13, 1951.

General of the Army DOUGLAS MACARTHUR,
New York City.

MY DEAR GENERAL: The text of the Japanese peace treaty was made public today. I have also been informed that September 4 has been set as the date for the signing of it at San Francisco.

On this joyful day I desire to express the profound gratitude of myself and my Government to you, who have long been a vigorous proponent of an early peace for Japan.

It is gratifying that your efforts and exhortations have borne fruit. A fair and magnanimous treaty has been written embodying the principles as laid down first by you. I only regret I cannot see and thank you in person.

Yours sincerely,

SHIGERU YOSHIDA.

MAC ARTHUR TO YOSHIDA

AUGUST 20, 1951.

His Excellency SHIGERU YOSHIDA,
Prime Minister of Japan,
Tokyo, Japan.

DEAR MR. PRIME MINISTER: I am delighted to have before me your thoughtful and generous note of July 13.

I rejoice with you and the Japanese people that a fair and just treaty is projected for early consummation. It is indeed a source of immense personal satisfaction that the spiritual and moral values which throughout have guided the formulation of occupation policy will find permanent reflection in the instrument designed formally to restore the peace.

Thereby, Japan will reassume a position of dignity and equality within the family of nations and take a firm and invincible stand with the free world to repel those evil forces of international Communist tyranny which seek covertly or by force of arms to destroy freedom.

Upon the political, economic, and social base established so largely under your distinguished leadership, Japan's history lies before it. Continue faithful adherence to the following sound political policies and principles of good government, and healthy national progress will be assured:

Public morality is the touchstone to the people's faith in the integrity of the governmental process.

Restraint and frugality in the use of the public purse produces economic stability, encourages individual thrift, and minimizes the burden of taxation.

Avoidance of the excessive centralization of the political power safeguards against the danger of totalitarian rule with the suppression of personal liberty, advances the concept of local autonomy, and develops an acute consciousness in the individual citizen of his political responsibility. Undue paternalism in government tends to sap the creative potential and impair initiative and energy in those who thereby come to regard governmental subsidy as an inalienable right.

The preservation, inviolate, of the economic system based upon free, private, competitive enterprise alone maximizes the initiative, the energy, and in the end, the productive capacity of the people.

The vigorous and faithful implementation of the existing land laws providing land ownership for agricultural workers and of the labor laws providing industrial workers a voice in the conditions of their employment is mandatory if these all-important segments of Japanese society are to enjoy their rightful dignity and opportunity, and social unrest based upon just grievance is to be avoided.

The Bill of Rights ordained by the Constitution must be vigilantly preserved if the Government would be assured the people's full support. Public criticism should be encouraged rather than suppressed as providing a powerful check agains the evils of maladministration of the political power. Freedom of speech as an inalienable right should never be challenged unless it directly violates the laws governing libel and slander.

The courts must function as the champion of human justice and the police power be exercised with primary regard to individual rights.

Without sacrifice of the principles of justice the devious advances of international communism must be firmly repelled as a threat to internal peace and the national security.

To such end, so long as existing international tensions exist in Asia, adequate security forces should be maintained to safeguard Japan's internal peace against any threatened external attack.

Indeed, a Japan erected firmly upon such a norm of political principle and policy, as well as setting a sure course to its own free destiny, could not fail to exercise a profound and beneficial influence upon the course of events in continental Asia. It would, in addition, contribute immeasurably to the spiritual and material advance of civilization.

I have faith that the Japanese people will hold invincibly to such a course.

Cordially yours,

DOUGLAS MACARTHUR.

RULES OF PROCEDURE IN CONGRESSIONAL INVESTIGATIONS AND DEROGATORY REMARKS MADE IN DEBATE BY MEMBERS OF CONGRESS

Mr. KEFAUVER. Mr. President, on behalf of myself, the Senator from Connecticut [Mr. BENTON], the Senator from Kansas [Mr. CARLSON], the Senator from Wyoming [Mr. HUNT], the Senator from New York [Mr. IVES], the Senator from Washington [Mr. MAGNUSON], the Senator from Michigan [Mr. MOODY], the Senator from Oregon [Mr. MORSE], the Senator from Maryland [Mr. O'CONOR], the Senator from Rhode Island [Mr. PASTORE], the Senator from Maine [Mrs. SMITH], the Senator from Minnesota [Mr. THYE], the Senator from New Hampshire [Mr. TOBEY], the Senator from Wisconsin [Mr. WILEY], the Senator from Vermont [Mr. AIKEN], the Senator from Missouri [Mr. HENNINGS], the Senator from West Virginia [Mr. NEELY], and the Senator from Montana [Mr. MURRAY], I ask unanimous consent to submit for appropriate reference a concurrent resolution establishing rules of procedure in congressional investigations.

There being no objection, the concurrent resolution (S. Con. Res. 44) submitted by Mr. KEFAUVER (for himself and other Senators) was received and referred to the Committee on Rules and Administration, as follows:

Whereas congressional investigations are one of the most important of the legislative processes, since Congress constantly needs factual, well-balanced information in many different fields to enable it to act wisely in the public interest; and

Whereas the investigative power of Congress affords protection against abuse of governmental power and a most effective means of focusing public opinion upon national problems; and

Whereas the flow of information to the people through the medium of congressional investigations has gained new importance with the advent of new methods of rapid communication; and

Whereas such investigations should be preserved as a means of effecting good government, without permitting them to be used as an instrument for abridging the constitutional rights of citizens: Now therefore be it

Resolved by the Senate (the House of Representatives concurring), That the following provisions of this concurrent resolution are adopted (1) as an exercise of the rule-making power of the Senate and House of Representatives, respectively, and as such they shall be considered as part of the rules of each House, respectively, and (2) with full recognition of the constitutional right of either House to change such rules (so far as relating to the procedure in such House) at any time, in the same manner and to the same extent as in the case of any other rule of such House.

SEC. 2. Insofar as practicable, any person or organization whose activities are the subject of investigation by a committee, or about whom derogatory information is proposed to be presented at a public hearing of a committee, shall be fully advised by the committee as to the matters into which the committee proposes to inquire and the derogatory material which is proposed to be presented. Insofar as practicable, all material reflecting on the character of any individual or organization which is proposed to be presented at a public hearing of a committee shall be first reviewed in executive session and shall not be presented at a public hearing except pursuant to majority vote of the committee.

SEC. 3. Any person or organization whose activities are the subject of any investigation by a committee, or about whom a derogatory statement is made or material is presented at any public hearing of a committee, shall—

(1) be given an opportunity to present evidence in his or its own behalf at the same session and, if possible, on the same day;

(2) be permitted to appear before the committee to be accompanied and advised by counsel, who shall within appropriate limits be entitled to question such person or representatives of such organization in order to bring out all pertinent facts;

(3) be permitted to file with the committee a limited number of interrogatories to be answered by witnesses who have testified to derogatory material about such person or organization;

(4) be entitled to have the committee subpena witnesses for limited direct or adverse examination by such person or organization, or by his or its counsel, subject to the discretion of the committee; and

(5) be permitted to file at the conclusion of the evidence a rebuttal attempt, which shall be made a part of the record and considered in the committee's report.

SEC. 4. Any witness who asserts a bona fide claim of privilege shall be entitled to present such claim to the committee, either in his own proper person or through counsel, and secure the committee's ruling.

SEC. 5. No subpena to inquire into the private affairs of any individual shall be issued by any committee except pursuant to majority vote of the committee.

SEC. 6. No person shall be required to testify in executive session of any committee unless a majority of the committee expressly rules that the public interest requires that such person's testimony shall be kept secret. Any such examination shall be held before not less than two committee members. Testimony taken in executive session shall be kept secret and shall not be released, or used in public hearings, without the approval of a majority of the committee.

SEC. 7. No witness before a committee shall be compelled to testify as to his religious or political belief unless the committee rules by majority vote that such testimony is relevant to the inquiry.

SEC. 8. Until after the committee has been given a reasonable time to file its report, members of committees shall refrain from making derogatory comments about a witness in either House or elsewhere and shall refrain from revealing the contents of any committee report or the conclusions contained in such report prior to its issuance.

SEC. 9. Minority reports, if any, shall be filed at the same time as majority reports on investigations involving the private affairs of individuals.

SEC. 10. All of the evidence involving the private affairs of individuals upon which a committee report, finding or conclusion is